are 80 to 100 million people using illicit drugs and psychotropic substances in India. Many of them will fall foul of the law and Indian jails would be clogged with them. Satish Maneshinde, Khan's lawyer, makes a significant point when he says, "Aryan Khan was a one-off case where you got a person from a renowned family, yet with all the power and all the money and the best legal team he engaged, he still had to suffer for 26 days in jail. In any other country, there would be a large compensation for such abuse." Yet, in India, with an estimated 70,000 people being arrested every year for the illicit possession and consumption of drugs, thousands languish in jails with no judicial help.

THE CASE FOR DECRIMINALISTION

The social justice and empowerment ministry has moved a proposal to amend the NDPS Act to decriminalise the use of certain illicit drugs, especially cannabis and some opium derivatives. Many experts have supported the move. Dr Atul Ambekar, a professor at the National Drug Dependence Treatment Centre at AIIMS in Delhi, says, "My stand is no different from what the larger scientific community, including the WHO and the UN, is saying. That is people consuming drugs need not be seen as criminals. Making it a criminal act is not just ineffective but detrimental to society. One, it diverts your whole law enforcement and drug supply control agencies towards tackling millions of people consuming drugs as they are low-hanging fruit. It is a loss of opportunity as they should be putting their efforts and resources toward catching the big fish." He also points to a second, equally significant reason to decriminalise drugs consumption. "People now have a more fundamental understanding of human rights too, it simply does not make sense to penalise something that is just unhealthy behaviour."

NCB's Pradhan, however, is concerned that a blanket decriminalisation of drugs would open the floodgates for drug consumption among youth without inhibition. Many parents, he says, want the strict NDPS laws to continue because they don't know how to handle their children's addiction. The fear of the law, they feel, could help. Pradhan wants the amendment to be nuanced, which decriminalises the consumption of certain illicit drugs but also retains the punitive system for repeat offences. Much like traffic violations, where you pay a light fine for the first few offences but your licence is withdrawn if you exceed a certain number of violations.

Dr Pratima Murthy, director of NIMHANS in Bengaluru, approaches the issue from another standpoint. "The current NDPS Act has a provision for diverting those found guilty of consuming illicit drugs to seek treatment, but it's allowed only once," she says. "Drug abuse, however, is a chronic problem and relapse is the rule rather than exception." She recommends that young people be told they can go back home, not worry, keep in touch, and that they will be given help instead of being put back in jail. Murthy also calls for a change in the way society looks at drug dependency. In her experience, she says, youngsters may try drugs under peer pressure. But they continue to use them because it helps them de-

WHAT NEEDS TO BE DONE

- Amend the NDPS Act to decriminalise consumption of certain drugs. Currently, depending on the quantities possessed and consumed, consumption is punished with rigorous imprisonment ranging from 6 months to 10 years
- The NCB is advocating that instead of criminal charges, there should be graded punishment norms for those caught consuming or possessing illegal drugs for personal use—starting with a warning, followed by social service and then mandatory rehabilitation
- Rather than go after the small peddlers and consumers, the NCB needs to focus on the big fish and its staff and facilities need to be beefed up to tackle both national and international cartels
- State police need to be trained to investigate drug-related cases to tighten the noose on cartels
- The Ministry of Social Justice needs to set up more drug rehabilitation centres in all major district headquarters and staff them adequately
- Awareness programmes to warn youth of the dangers of drug abuse need to be enhanced
- Newer treatments, including substitutes for addicts, need to be provided at subsidised rates



INSIDER VIEW
A drug rehabilitation centre in a village near Kotkapura, Punjab